INDEPENDENT CONTRACTOR SERVICES AGREEMENT (PLATFORM TASKS)

This Independent Contractor Services Agreement (this **“Agreement”**) is entered into and becomes effective on the date the Contractor executes it (the **“Effective Date”**).

Atlas Capture LLC, a Wyoming limited liability company, with its principal place of business at 30 N Gould St Ste R, Sheridan, WY 82801, USA, email: team@atlascapture.io (**“Client”**),

and Muhajir Hayru **[Contractor Legal Name]**, a [individual / corporation / sole proprietor] with its address at Ethiopia **[Contractor Address]** (**“Contractor”**).

Client and Contractor may be referred to individually as a **“Party”** and collectively as the **“Parties.”**

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1. OVERVIEW AND DEFINITIONS

1.1 Purpose

Client makes available certain tasks through its platform and related systems. Contractor wishes to perform such tasks as an independent contractor.

1.2 Definitions

For purposes of this Agreement:

“Platform” means Client’s website, applications, APIs, tools, workflows, or systems through which Tasks are offered, performed, recorded, reviewed, audited, and paid.

“Services” means the services, tasks, and responsibilities that Client requests and Contractor performs from time to time under this Agreement, whether described in (a) Task postings and Platform instructions, (b) written task assignments, project briefs, or instructions issued by Client (**“Work Assignments”**), and/or (c) any Statement of Work.

“Task” means a discrete unit of work made available by Client via the Platform (including annotation, review, edit, audit, or other deliverables) with defined specifications and Acceptance Criteria.

“Acceptance Criteria” means the objective requirements for a Task to be accepted, as communicated in the Platform, Work Assignment, or written instructions, including formatting rules, completeness requirements, QA thresholds, rework rules, and any security or data-handling requirements.

“Rate Card” means Client’s then-current schedule of fees and rules for Tasks (including per-task, per-output unit, per-batch fees, bonuses, penalties, and quality thresholds), as displayed in the Platform and/or at a URL or location designated by Client. The Rate Card may vary by Task type, project, region, qualification level, or other criteria.

“Task Records” means the Platform logs and records reflecting Task IDs, output units, submission timestamps, acceptance or rejection status, QA results, audit results, and amounts earned.

“Work Product” means any and all deliverables, materials, results, outputs, inventions, software, code, documentation, data, designs, media, annotations, labels, reviews, edits, or other work created, developed, produced, collected, or delivered by or on behalf of Contractor in connection with the Services.

“Confidential Information” has the meaning given in Section 6.

“Personal Data” has the meaning given in Section 7.

1.3 Order of Precedence

If there is a conflict between the terms of this Agreement and any written document that expressly states it modifies this Agreement (including a signed SOW), that document governs solely with respect to the Services and time period covered by it, and only to the extent of the express modification.

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2. ENGAGEMENT AND SCOPE

2.1 Engagement

Client engages Contractor to perform Services made available through the Platform, Work Assignments, and any SOWs agreed by the Parties.

2.2 Tasks and Work Assignments

Client may request Services through the Platform and/or Work Assignments communicated via email, project management tools, messaging platforms, or other written channels. Tasks may specify, as applicable:

- scope and specifications
- deliverables and output formats
- Acceptance Criteria and QA thresholds
- timelines, availability windows, or deadlines
- project-specific instructions and data-handling requirements

2.3 Contractor Control of Performance

Subject only to Task specifications, Acceptance Criteria, and deadlines (if any):

- Contractor determines the manner, method, and means of performing the Services.
- Contractor controls its schedule and location.
- Contractor will perform the Services professionally, diligently, and consistent with industry standards.

2.4 Tools and Work Location

Unless expressly stated otherwise in writing:

- Contractor supplies, at its sole cost, all equipment, software, tools, and facilities needed.
- Contractor performs Services from Contractor's own premises or locations selected by Contractor.

2.5 No Subcontracting or Delegation Without Prior Written Approval

(a) Contractor will not subcontract, delegate, crowdsource, or use any third party (including affiliates) to perform any Services or access Client systems, media, or data without Client's prior written approval in each instance.

(b) No offshore or cross-border delegation without approval. Contractor will not permit any person located in a different country than Contractor's disclosed work location to access Client systems, media, or data without Client's prior written approval.

(c) Approved personnel requirements. Any approved subcontractor or personnel must:

- be individually approved by Client in writing
- sign obligations at least as protective as this Agreement (including confidentiality, IP, and data protection)
- complete required security onboarding
- access Client systems only via accounts provisioned by Client (no credential sharing)

(d) Contractor remains the primary obligor and is fully responsible for all acts and omissions of any approved subcontractor/personnel and for full compliance with this Agreement.

(e) Unauthorized subcontracting, credential sharing, or unauthorized cross-border access is a material breach and grounds for immediate termination and immediate suspension of access.

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3. COMPENSATION, INVOICING, AND EXPENSES

3.1 Fees Based on Accepted Output (Rate Card Controls)

(a) Contractor will be paid the fee shown in the applicable Rate Card for each Task that is completed and **accepted** in accordance with the Acceptance Criteria.

(b) Payment is based on **accepted outputs and accepted Tasks**, not time spent. Task Records are the primary record of completion and payment.

(c) No minimums. Client does not guarantee any minimum volume of Tasks.

3.2 Rate Card Updates (Prospective) and In-Progress Tasks

(a) Client may update the Rate Card prospectively by posting the updated Rate Card in the Platform and/or at the designated Rate Card location, and/or by email notice.

(b) Unless Client states otherwise, updates apply only to Tasks accepted by Contractor after the effective time of the update.

(c) For any Task already accepted or begun by Contractor, the Rate Card in effect at the time the Task was accepted will apply unless the Parties agree otherwise in writing or Client cancels the Task for security, legal, or operational reasons.

(d) If Contractor does not wish to perform Tasks under an updated Rate Card, Contractor may simply refrain from accepting new Tasks. Contractor may not use a rate update as justification to retain Client data, delay return or destruction of Confidential Information, or continue accessing Client systems.

3.3 Invoicing and Payment Statements (Self-Billing)

(a) Unless Client requires a separate invoice by local law, the Platform's Task Records and payout statement for a payment period will be the primary basis for payment.

(b) Contractor authorizes Client (or its payment processor) to generate a self-billing invoice or payment statement on Contractor's behalf reflecting accepted Tasks, applicable fees, and amounts due. Contractor agrees such statement is sufficient documentation of amounts due.

(c) If Contractor must provide an invoice, it will reference the payment period and include the Platform statement totals or list Task IDs and any required tax information.

3.4 Payment Terms; Disputes

(a) Client will pay undisputed amounts within **[14]** days after the end of the applicable payment period (or receipt of a proper invoice if required).

(b) Disputes relate to Task acceptance, audit results, QA results, suspected fraud, duplicate submissions, or nonconformity. Client may withhold only amounts reasonably attributable to disputed or rejected Tasks while investigating, and will provide a reason in the Platform or in writing.

3.5 Expenses

Contractor is responsible for its own expenses. Client reimburses expenses only if expressly authorized in writing in advance and properly documented.

3.6 Taxes and Withholdings

Fees are exclusive of all taxes unless agreed otherwise in writing. Contractor is solely responsible for all taxes, social contributions, and governmental charges arising from compensation received under this Agreement. Client will not withhold payroll or employment taxes for Contractor.

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4. STATUS OF CONTRACTOR

4.1 Independent Contractor

Contractor is an independent contractor and not an employee, worker, partner, agent, franchisee, or representative of Client.

4.2 No Benefits

Contractor is not eligible for benefits provided by Client to employees, including paid time off, insurance, retirement, bonuses, or equity.

4.3 No Authority to Bind

Contractor has no authority to bind Client or incur obligations on Client's behalf.

4.4 Compliance and Misclassification Indemnity

Contractor is responsible for its registrations, licenses, filings, and compliance with applicable laws relating to Contractor and its personnel. If any authority alleges or determines Contractor should be treated as an employee or worker of Client, Contractor will indemnify Client for resulting taxes, contributions, back pay, benefits, penalties, interest, and reasonable legal fees, except to the extent directly caused by Client's intentional misconduct.

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5. WORK PRODUCT, OWNERSHIP, AND INTELLECTUAL PROPERTY

5.1 Work Product

"Work Product" includes all annotations, labels, edits, reviews, audit outputs, datasets, documentation, media, and any other materials created or delivered in connection with the Services.

5.2 Ownership and Assignment

To the fullest extent permitted by law, all Work Product is the sole and exclusive property of Client from the moment of creation. Contractor hereby assigns to Client all rights, title, and interest worldwide in and to the Work Product, including all intellectual property rights.

5.3 Further Assurances; Power of Attorney

Contractor will execute documents and take steps reasonably necessary to secure or enforce Client's rights in Work Product. If Contractor fails or is unable to do so within a reasonable time, Contractor appoints a duly authorized officer of Client as attorney-in-fact solely to execute documents necessary to perfect Client's rights.

5.4 Moral Rights Waiver

To the maximum extent permitted by law, Contractor irrevocably waives and agrees not to assert any moral rights or similar rights in the Work Product.

5.5 Background Technology License

If Work Product incorporates Contractor Background Technology, Contractor grants Client a perpetual, irrevocable, worldwide, transferable, sublicensable, royalty-free license to use, reproduce, modify, distribute, and exploit such Background Technology as necessary to use and exploit the Work Product.

5.6 No Additional Compensation

Fees are the entire compensation for Services and assignment and licensing of rights in Work Product.

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6. CONFIDENTIAL INFORMATION AND INFORMATION SECURITY

6.1 Confidential Information

"Confidential Information" includes all non-public information disclosed by or on behalf of Client, including business, technical, operational, pricing, client, partner, product, model, dataset,

media, recordings, annotations, QA systems, source code, credentials, workflows, and any derivatives.

6.2 Non-Use and Non-Disclosure

Contractor will:

- use Confidential Information only to perform Services
- not disclose Confidential Information to any third party without Client's written permission
- restrict access to authorized individuals approved by Client (if any), subject to Section 2.5

6.3 Security Controls

Contractor will implement and maintain appropriate administrative, physical, and technical safeguards, including:

- unique credentials, MFA where supported, no credential sharing
- encrypted storage where feasible, secure devices, updated OS, malware protection
- no uploading Client data to third-party tools or AI systems unless expressly authorized in writing

6.4 No License Implied

Except as expressly granted in writing, no license or other rights are granted to Contractor under any patents, copyrights, trademarks, trade secrets, or other rights of Client.

6.5 No Reverse Engineering

Contractor will not reverse engineer, decompile, disassemble, or otherwise attempt to derive source code, models, system design, datasets, or underlying structure of the Platform or Client materials, except to the extent such restriction is prohibited by law.

6.6 Residuals Restriction

Contractor agrees that Contractor will not use Client Confidential Information, including information retained in memory (residual knowledge), for any purpose other than performing Services for Client. Contractor will not create or train any dataset, model, prompt library, labeling guide, or competing workflow using Client Confidential Information.

6.7 Legal Process

If Contractor is compelled by law to disclose Confidential Information, Contractor will provide prompt notice to Client (unless prohibited) and cooperate to seek protective treatment. Contractor will disclose only the minimum required.

6.8 Return or Destruction

Upon request or termination, Contractor will promptly return or destroy Confidential Information and certify destruction if requested.

6.9 Injunctive Relief

Contractor acknowledges that breach of this Section 6 may cause irreparable harm. Client may seek injunctive or equitable relief in addition to any other remedies.

6.10 Survival

Confidentiality obligations survive termination for **5 years**, and trade secret obligations survive as long as the information remains a trade secret under applicable law.

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7. PRIVACY, DATA PROTECTION, AND MONITORING

7.1 Personal Data

“Personal Data” means any information relating to an identified or identifiable individual processed in connection with the Services.

7.2 Compliance

Contractor will comply with applicable data protection laws and Client’s data-handling requirements communicated via the Platform or Work Assignments.

7.3 Monitoring

Client may log access and activity on Client systems for security, fraud prevention, QA, and verification of Task completion. Such logs are not intended to measure time worked.

7.4 Data Incidents

Contractor will notify Client without undue delay (and in any event within **24 hours**) after discovering any suspected or actual security incident involving Client data, credentials, or systems, and will cooperate with investigation and remediation.

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8. WARRANTIES, COMPLIANCE, AND ANTI-CORRUPTION

Contractor represents and warrants that:

- Contractor's performance will be professional and conform to Acceptance Criteria
- Work Product will not infringe third-party rights
- Contractor will comply with all applicable laws, including anti-bribery and sanctions/export controls where applicable
- Contractor has no conflicting obligations preventing performance

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9. AUDIT, QUALITY CONTROL, REJECTION, AND REWORK

9.1 Audit Rights

Client may review, audit, test, and evaluate any Work Product and Contractor's compliance with Acceptance Criteria, including via automated checks, human QA, sampling, or full review.

9.2 Acceptance, Rejection, and No Obligation to Pay for Nonconforming Output

(a) Client may accept or reject Work Product in whole or in part based on conformity to Acceptance Criteria.

(b) Client has no obligation to pay for Tasks or outputs that are rejected due to nonconformity, suspected fraud, policy violations, or security violations.

(c) Client may suspend payouts, access, or Task availability during investigation of quality or integrity concerns.

9.3 Rework at No Additional Cost

If Client rejects Work Product and permits rework, Contractor will re-perform or correct the Work Product at no additional cost within the timeframe specified by Client. If Contractor fails to timely rework, Client may (at its option) reassign the Task, treat it as rejected, or terminate access.

9.4 Offsets

To the extent permitted by law, Client may offset amounts owed to Contractor against amounts Contractor owes Client arising from fraud, chargebacks, duplicate payments, breach remediation costs, or other amounts due under this Agreement.

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10. DURATION, TERMINATION, AND ACCESS CONTROL

10.1 Term

This Agreement begins on the Effective Date and continues until terminated.

10.2 Suspension of Access

Client may suspend Contractor's access to the Platform or Tasks immediately for security, legal, compliance, quality, or integrity reasons.

10.3 Termination for Convenience

Client may terminate this Agreement, any Work Assignment, or Task access at any time upon **[7]** days' written notice, or immediately if access suspension is warranted under Section 10.2.

Contractor may terminate this Agreement upon **[14]** days' written notice. Contractor may stop accepting new Tasks at any time.

10.4 Termination for Cause

Either Party may terminate immediately if the other Party materially breaches and fails to cure within **7 days** after notice, or for fraud, willful misconduct, serious data breach, or illegal acts that materially harm or threaten to harm the other Party. Client may terminate immediately if Contractor creates unacceptable security, legal, or reputational risk in Client's reasonable judgment.

10.5 Obligations Upon Termination

Contractor will stop performing Services, deliver all Work Product, and return or destroy Confidential Information. Client will pay undisputed amounts for accepted Work Product up to the effective date, subject to audit and dispute rights.

10.6 Survival

Sections that by their nature should survive will survive, including Sections 3.6, 5, 6, 7, 9, 10.5-10.6, 11, 12, and 13.

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11. RISK ALLOCATION, INDEMNITY, AND LIABILITY

11.1 Contractor Indemnity (General)

Contractor will indemnify, defend, and hold harmless Client and its affiliates from claims, damages, liabilities, penalties, costs, and expenses (including reasonable attorneys' fees) arising from:

- breach of this Agreement
- infringement or alleged infringement by Work Product
- Contractor's negligence, willful misconduct, or fraud
- unauthorized subcontracting or credential sharing

11.2 Security Breach Indemnity (Explicit)

Without limiting Section 11.1, Contractor will indemnify and hold harmless Client from all losses arising from any actual or suspected security incident or data breach caused by Contractor or Contractor's systems, personnel, or unauthorized subcontractors, including:

- regulatory inquiries, investigations, and fines or penalties
- required notifications to individuals or authorities
- credit monitoring or identity protection services (if applicable)
- incident response, forensic investigation, containment, remediation, and recovery costs
- Client's internal time and reasonable third-party costs
- client or partner claims and contractual liabilities
- reputational mitigation expenses reasonably incurred

11.3 Limitation of Liability

To the maximum extent permitted by law:

- Client will not be liable for indirect, incidental, special, consequential, exemplary, or punitive damages.
- Client's aggregate liability will not exceed the fees paid to Contractor in the **3 months** preceding the event giving rise to the claim.

Nothing limits liability that cannot be limited by law. Contractor's liability is not limited for Sections 5, 6, 7, 9, 11.2, fraud, willful misconduct, or infringement.

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12. GENERAL TERMS

12.1 Assignment

Contractor may not assign this Agreement without Client's prior written consent. Client may assign to an affiliate or successor.

12.2 Notices

Notices must be in writing. Notices to Client may be sent to **team@atlascapture.io**. Notices to Contractor may be sent to **[Contractor Email]** and/or the Platform notification method.

12.3 Entire Agreement; Amendments

This Agreement is the entire agreement regarding its subject matter. Client may update Platform policies, security requirements, and Task rules prospectively by posting in the Platform. Any amendment to core legal terms must be in writing.

12.4 Governing Law; Venue; Forum Non Conveniens Waiver

This Agreement is governed by Wyoming law, without regard to conflicts rules. The Parties consent to exclusive jurisdiction and venue in the state or federal courts located in Wyoming for any dispute arising out of or relating to this Agreement. Each Party waives any objection based on inconvenient forum or forum non conveniens.

12.5 Injunctive Relief

Each Party acknowledges that breach of Sections 5 or 6 may cause irreparable harm. The non-breaching Party may seek injunctive or equitable relief.

12.6 Electronic Signatures

Electronic signatures are valid and binding.

12.7 One-Sided Execution; Sufficiency of Contractor Signature

Client is not required to countersign this Agreement for it to become effective. Contractor's execution via DocuSign or any electronic signature system constitutes full acceptance and creates a legally binding contract. The Effective Date is the date Contractor executes this Agreement.

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13. FORCE MAJEURE

Neither Party is liable for delay or failure to perform due to events beyond reasonable control, provided the affected Party gives prompt notice and uses reasonable efforts to mitigate.

CONTRACTOR

Name: Muhajir Hayru

Email: muhajirhayru18@gmail.

Date: 2026-08-16 06:36 AM

Signature: 

Signing Certificate

Signer Events	Signature	Details
Muhajir Hayru muhajirhayru18@gmail.com Signer **Authentication Level:** Email	 **Signature ID:** CMSVUMBZ13ZMRAD1V5CQKWAAA **IP Address:** 196.190.63.237 **Device:** Windows - Chrome 151.0.0.0	**Sent:** Unknown **Viewed:** 2026-08-16 01:36:37 PM (UTC) **Signed:** 2026-08-16 01:36:37 PM (UTC) **Reason:** I am a signer of this document

Signing certificate provided by: Documenso